

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



September 20, 2018

Honorable Robert S. Burns
Judge of the Superior Court
County of Kings
1640 Kings County Drive
Hanford, CA 93230

Re: Sanchez, Eduardo
CDC No.: AR5696
Case No.: 12CM3560
Date of Sentence: 09/27/2013

Dear Honorable Robert S. Burns:

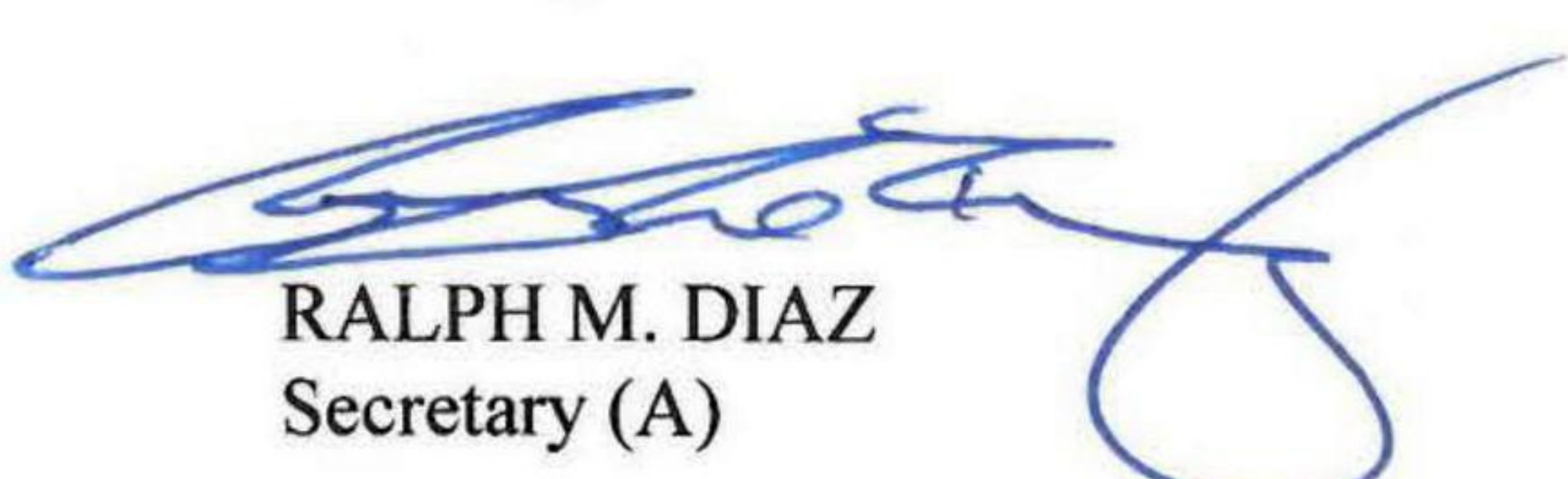
The purpose of this letter is to provide the court with authority to resentence Eduardo Sanchez pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Sanchez was sentenced in 2013, and was convicted of section 245, subdivision (a)(1), ASSAULT W/DEADLY WEAPON, to wit A CAR. The trial court sentenced inmate Sanchez on 09/27/2013. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Sanchez's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Sanchez's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,


RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Donna L. Tarter, Kings County Presiding Judge
Kings District Attorney
Public Defender

AR 5696

FELONY ABSTRACT OF JUDGMENT - DETERMINATE
(NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED)

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: KINGS					
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: EDUARDO SANCHEZ		DOB: 03-20-94	12CM3560 -A		
AKA:			13CM1128A -B		
CII NO.: A30962517		☐ NOT PRESENT	-C		
BOOKING NO.: 12-0320327			-D		
FELONY ABSTRACT OF JUDGMENT ☒ PRISON COMMITMENT ☐ COUNTY JAIL COMMITMENT		☐ AMENDED ABSTRACT			
DATE OF HEARING 09-27-13	DEPT. NO. 5	JUDGE ROBERT S. BURNS			
CLERK KATRINA MORSHEAD	REPORTER DONNA MECHEM	PROBATION NO. OR PROBATION OFFICER IBARRA ☐ IMMEDIATE SENTENCING			
COUNSEL FOR PEOPLE SARAH HACKER, D.D.A.		COUNSEL FOR DEFENDANT MELINA BENNINGHOFF ☒ APPOINTED			

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
____ (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIM COMMITTED	DATE OF CONVICTION (MO./DATE/YR.)	CONVICTED BY			TERM IN MONTHS	CONCURRENT	1/3 CONSECUTIVE	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (refer to item 5)	654 STAY	SERIOUS FELONY	VIOLENT FELONY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA									YRS.	MOS.
2A	PC	245(a)(1)	ASSAULT W/DEADLY WEAPON, to wit, A CAR	2012	08/21/13			X	M						X	X	3	0
2B	PC	243(c)(1)	BATTERY & VIOLENCE TO INFLICT INJURY ON CUSTODIAL OFFICER	2013	08/21/13			X	M	X							(2)	(0)
					/ /													
					/ /													
					/ /													

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

COUNT	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	TOTAL
2A	12022.7(a)PC	3Y	186.22(b)(1)PC	5Y			8 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

ENHANCEMENT	TIME IMPOSED, "S" or "PS"	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	TOTAL

4. Defendant sentenced ☐ to county jail per PC 1170(h)(1) or (2)
☒ to prison per PC 1170(a), 1170.1(a) or 1170(h)(3) due to ☒ current or prior serious or violent felony ☐ PC 290 or ☐ PC186.11 enhancement
☐ per PC 667(b)-(i) or PC 1170.12 (strike prior)
☐ per PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. ☐ Defendant ordered to report to local parole or probation office.

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

6. TOTAL TIME ON ATTACHED PAGES:

COUNTY	CASE NUMBER

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME: 11 0

PEOPLE OF THE STATE OF CALIFORNIA vs
 DEFENDANT: **EDUARDO SANCHEZ**

12CM3560

-A

13CM1128A

-B

-C

-D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fines:

Case A: \$280.00 per PC 1202.4(b) (forthwith per PC2085.5 if prison commitment); \$280.00 per PC 1202.45 suspended unless parole is revoked.
 \$_____ per PC 1202.44 is now due, probation having been revoked.

Case B: \$280.00 per PC 1202.4(b) (forthwith per PC2085.5 if prison commitment); \$280.00 per PC 1202.45 suspended unless parole is revoked.
 \$_____ per PC 1202.44 is now due, probation having been revoked.

Case C: \$_____ per PC 1202.4(b) (forthwith per PC2085.5 if prison commitment); \$_____ per PC 1202.45 suspended unless parole is revoked.
 \$_____ per PC 1202.44 is now due, probation having been revoked.

Case D: \$_____ per PC 1202.4(b) (forthwith per PC2085.5 if prison commitment); \$_____ per PC 1202.45 suspended unless parole is revoked.
 \$_____ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$RESERVED ☐ Amount to be determined to ☒ victim(s)* ☐ Restitution Fund

Case B: \$RESERVED ☐ Amount to be determined to ☒ victim(s)* ☐ Restitution Fund

Case C: \$_____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

Case D: \$_____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

☐ * Victim name(s), if known, and amount breakdown in item 13, below. ☒ * Victim names(s) in probation officer's report.

c. Fines:

Case A: \$_____ per PC 1202.5. \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$_____ Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

Case B: \$_____ per PC 1202.5. \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$_____ Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

Case C: \$_____ per PC 1202.5. \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$_____ Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

Case D: \$_____ per PC 1202.5. \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$_____ Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

d. Court Operations Assessment: \$80.00 per PC 1465.8. e. Conviction Assessment: \$60.00 per GC 70373. f. Other: \$_____ per (specify): _____

10. TESTING: ☒ Compliance with PC 296 verified ☐ AIDS per PC 1202.1 ☐ other (specify): _____

11. REGISTRATION REQUIREMENT: ☒ per (specify code section): PC186.30

12. ☐ MANDATORY SUPERVISION: Execution of a portion of the defendant's sentence is suspended and deemed a period of mandatory supervision under Penal Code section 1170(h)(5)(B) as follows (specify total sentence, portion suspended, and amount to be served forthwith):

Total: Suspended: Served forthwith:

13. Other orders (specify):

2A-DEFENDANT'S DRIVERS LICENSE IS SUSPENDED FOR LIFE PURSUANT TO 13351.5VC.

16. CREDIT FOR TIME SERVED:

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	417	363	54
B	202	176	26
C			
D			
Date Sentence Pronounced		Time Served in State Institution:	
09-27-13		DMH	CDC
		[]	[X]

14. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit a post-sentence report to CDCR per 1203c.

Defendant's race/national origin: HISPANIC

15. EXECUTION OF SENTENCE IMPOSED

- a. ☒ at initial sentencing hearing
- b. ☐ at resentencing per decision on appeal
- c. ☐ after revocation of probation
- d. ☐ at resentencing per recall of commitment. (PC 1170(d).)
- e. ☐ other (specify): _____

17. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.

To be delivered to ☐ the reception center designated by the director of the California Department of Corrections and Rehabilitation.

☐ county jail ☒ other (specify): WASCO STATE PRISON

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE

KATRINA MORSHEAD

DATE

10-09-13